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Case Number: NAIH-4727-9/2023
Subject: Decision
Case Officer: [...]

H A T A R O Z A T

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...] in response to the application submitted by the applicant (address: [...]; hereinafter: Applicant) received by the Authority on April 11, 2023, regarding the non-fulfillment of the Applicant's access request against [...] (headquarters: [...]; hereinafter: Respondent), makes the following decisions in the data protection authority procedure initiated:

I.
The Authority grants the Applicant's request and establishes that the Respondent violated Article 12(3) of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: GDPR), concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC, by failing to take action within one month from the receipt of the request based on the Applicant's access request.

II.
The Authority grants the Applicant's request and establishes that the Respondent violated Article 15(1) and (3) of the GDPR by not providing substantive information to the Applicant regarding the processing of their personal data in response to the Applicant's request.

III.
The Authority grants the Applicant's request and, based on Article 58(2)(c) of the GDPR, obliges the Respondent to fulfill the Applicant's access request within 30 days from the date this decision becomes final.

IV.
Due to the violations established in points I and II, the Authority imposes an official data protection fine of

10,000,000 HUF (ten million forints)

on the Respondent, which must be paid within 30 days from the date this decision becomes final.

* * *

The fine must be paid to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000). When transferring the amount, reference must be made to the NAIH-4727/2023. FINE number.

If the Respondent fails to comply with the fine payment obligation within the deadline, they will be required to pay a late fee. The amount of the late fee corresponds to the statutory interest, which is equal to the central bank base rate valid on the first day of the calendar half-year affected by the delay. In case of non-payment of the fine and the late fee, the Authority will order the enforcement of the decision, and the fine and the late fee will be collected in the manner of taxes. The collection of the fine and the late fee as taxes will be carried out by the National Tax and Customs Administration.

The Respondent must provide proof of compliance with the obligation stated in point III of the decision

to the Authority simultaneously with the fulfillment, that is, within 30 days from the date this decision becomes final, with supporting evidence of the completion of the fulfillment.

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There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by filing a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court.¹ A request for a hearing must be indicated in the statement of claim. For those who do not benefit from full personal exemption from fees, the administrative lawsuit fee is 30,000 HUF, and the case is subject to the payment of court fees. Legal representation is mandatory in proceedings before the Metropolitan Court.

I. REASONING

I. Subject of the proceedings and facts

(1) The Applicant stated in their request received by the Authority on April 11, 2023, that on February 28, 2023, they filed a complaint against the Respondent due to the Respondent's actions. In the complaint, the Applicant stated that their account held with the Respondent as a former client was closed in December 2022, after which they had to appear in person at one of the Respondent's bank branches several times. On December 5, 2022, the Respondent transferred the amount on the account to the account number provided by the Applicant at the time of the account closure. In a letter sent to the Applicant, the Respondent specified the date of the contract termination as January 5, 2023. Nevertheless, on February 23, 2023, the Applicant received a call from the [...] phone number, during which the Respondent's representative informed them that a charge had been applied to their closed current account due to a parking fee from October 2022, and therefore their account could not be closed, and the Applicant was requested to pay 689 HUF to the Respondent. The Respondent's representative could not provide further information regarding the above-mentioned debt. Therefore, the Applicant requested that the Respondent's employee inform them about the reasons for the action taken and provide information regarding the processing of their data, including its handling for "debt collection" purposes, in accordance with Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: General Data Protection Regulation or GDPR) concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and provide a copy of their personal data.

(2) The complaint was assigned the number [...], and the Respondent informed the Applicant about the registration in an electronic letter sent from the [...] email address dated February 28, 2023.

(3) In a letter sent by post dated March 28, 2023, the Respondent apologized to the Applicant for the offense caused by their employee's communication. They further informed the Applicant that their contract numbered [...] was closed on January 5, 2023, and the disputed amount was not charged to their account. According to the Respondent's information, the service provider sent a notification regarding a previous parking fee after the account termination, which was communicated to the Applicant by their employee.

(4) In their request for the data protection authority's proceedings, the Applicant objected that the Respondent left their access request regarding the processing of their personal data unanswered and did not fulfill it within the one-month deadline set out in Article 12(3) of the GDPR.

¹ The form named NAIH_K01 serves to initiate the administrative lawsuit. The form can be filled out using the general form filling program (ÁNYK program). The form is accessible and can be downloaded from the Authority's website: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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(5) The Applicant requested the Authority to determine that the Respondent violated their right of access and to oblige the Respondent to fulfill the request of the affected party by providing the requested information and access (copy) to their personal data.

(6) In its decision NAIH-4727-2/2023, the Authority informed the Respondent about the initiation of the procedure and simultaneously called for a statement to clarify the facts.

(7) In the response letter registered under NAIH-4727-3/2023, the Respondent stated the reasons for not fulfilling the Applicant's access request, indicating that they had sought to resolve the problematic situation outlined in the complaint: the disputed amount did not need to be paid by the Applicant, and they requested an apology for the call and the behavior of the handling officer. The access request mentioned in the last sentence of the Applicant's complaint escaped the attention of the staff, "as the 'debt collection' purpose concerning the Applicant's data was not interpretable," thus the Respondent did not process the Applicant's personal data for such a purpose.

(8) The Respondent did not intend to collect an existing overdue claim against the Applicant but sought to remedy the situation arising from the fact that the Applicant had closed their bank account before the disputed amount of 698 HUF had been booked by the Respondent.

(9) Following the receipt of the Authority's decision NAIH-4727-2/2023 on May 25, 2023, the Respondent sent another letter to the Applicant under [...] number, stating that they were informing the Applicant as a supplement to their previous response that they do not process the Applicant's personal data for debt collection purposes. Furthermore, no additional information regarding the processing of the Applicant's personal data was provided.

(10) According to the Applicant's statement registered under NAIH-4727-862023, they received the above letter from the Respondent on June 9, 2023, but were not satisfied with its content. Therefore, on the same day, at 16:27, from the [...] email address – referring to the registration number of the Respondent's letter – they sent an electronic letter to the data protection@[...] email address, objecting to the fulfillment and drawing the Respondent's attention to the fact that it does not comply with the provisions of Article 15 of the GDPR, as "the subject of my request submitted on February 28, 2023, was the exercise of the right to information and access under Article 15 of the GDPR, which has not yet been fulfilled." The Applicant further stated that they do not find the Respondent's response acceptable because their request was not solely related to data processing for "debt collection" purposes, but encompassed all information related to the processing of their personal data under Article 15 of the GDPR. Additionally, in the Applicant's view, the Respondent's employee, contrary to the Respondent's statement, processed their personal data for debt collection purposes, and if the Respondent does not process the personal data for debt collection purposes, it cannot be established for what purpose the Respondent has processed or is processing the personal data. Based on all of this, the Applicant again requested the Respondent to comply with their obligation to provide information under Article 15 of the GDPR and to make a copy of their personal data available in accordance with Article 15(3) of the GDPR. According to the Applicant's statement, they did not receive a response from the Respondent to this letter by the date of their statement, July 11, 2023.

II. Applicable Legislation

(11) According to Article 2(1) of the GDPR, the GDPR applies to the data processing in this case.

(12) GDPR (63) recitals: If the data controller processes a large amount of information concerning the data subject, they may ask the data subject to provide the information prior to the disclosure.

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Please specify which information or data processing activities your request pertains to.

(13)

GDPR Article 12(3): The data controller shall inform the data subject of the measures taken in response to the request under Articles 15-22 without undue delay and in any event within one month of the receipt of the request. If necessary, taking into account the complexity of the request and the number of requests, this period may be extended by a further two months. The data controller shall inform the data subject of any extension of the deadline, together with the reasons for the delay, within one month of the receipt of the request. If the data subject has submitted the request electronically, the information shall be provided electronically where possible, unless the data subject requests

otherwise.

(14)

GDPR Article 12(4): If the data controller does not take action on the request of the data subject, it shall inform the data subject without undue delay and at the latest within one month of the receipt of the request of the reasons for not taking action, as well as the fact that the data subject has the right to lodge a complaint with a supervisory authority and to seek judicial remedy.

(15)

GDPR Article 15(1): The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed, and, if that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, including particularly third country recipients and international organizations;
- d) where applicable, the envisaged period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period;
- e) the existence of the right to request from the data controller rectification, erasure or restriction of processing of personal data concerning them, and to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) where the personal data are not collected from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Articles 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

(16)

GDPR Article 15(3): The data controller shall provide a copy of the personal data undergoing processing to the data subject. For any further copies requested by the data subject, the data controller may charge a reasonable fee based on administrative costs. If the data subject has submitted the request electronically, the information shall be provided in a commonly used electronic format, unless the data subject requests otherwise.

(17)

GDPR Article 58(2)(b), (c), and (i): Acting in its corrective capacity, the supervisory authority:

- b) shall issue a reprimand to the data controller or processor if their processing activities have infringed the provisions of this Regulation;
- c) shall order the data controller or processor to comply with the data subject's requests to exercise their rights under this Regulation;
- i) shall impose an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures referred to in this paragraph;

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(18)

Article 77(1) of the GDPR: Without prejudice to any other administrative or judicial remedies, every data subject shall have the right to lodge a complaint with a supervisory authority – in particular in the Member State of their habitual residence, their place of work, or the place of the alleged infringement – if the data subject considers that the processing of personal data relating to them infringes this Regulation.

(19)

Article 83(2) of the GDPR: Administrative fines shall be imposed, depending on the circumstances of each case, in addition to or instead of the measures referred to in Article 58(2)(a) to (h) and (j). In determining whether an administrative fine is necessary and in determining the amount of the administrative fine, the following shall be taken into account in each individual case:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purposes of the processing concerned, as well as the number of data subjects affected by the infringement and the level of damage suffered by them;
- b) the intentional or negligent character of the infringement;
- c) any action taken by the controller or processor to mitigate the damage suffered by data subjects;
- d) the degree of responsibility of the controller or processor, taking into account technical and organizational measures implemented by them pursuant to Articles 25 and 32;
- e) any relevant previous infringements by the controller or processor;
- f) the degree of cooperation with the supervisory authority, in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the infringement was notified by the controller or processor, and if so, how detailed the notification was;
- i) if the controller or processor has previously been subject to any of the measures referred to in Article 58(2) in relation to the same subject matter, compliance with those measures;
- j) whether the controller or processor adhered to approved codes of conduct pursuant to Article 40 or to approved certification mechanisms pursuant to Article 42; and
- k) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided, directly or indirectly, from the infringement.

(20)

Article 83(5)(b) of the GDPR: The infringement of the following provisions shall be subject to administrative fines of up to EUR 20,000,000, or in the case of an undertaking, up to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher, in accordance with paragraph (2):

- a) the rights of data subjects under Articles 12 to 22;

(21)

Section 2(2) of the Infotv.: The processing of personal data falling under the scope of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: General Data Protection Regulation) shall be governed by the General Data Protection Regulation as set out in Chapters III-V and VI/A, as well as in points 3, 4, 6, 11, 12, 13, 16, 17, 21, 23-24 of Section 3, in paragraph (5) of Section 4, in paragraphs (3)-(5), (7) and (8) of Section 5, in paragraph (2) of Section 13, in Section 23, in Section 25, in paragraphs (3), (4) and (6) of Section 25/G, in paragraph (2) of Section 25/H, in paragraph (2) of Section 25/M, in Section 25/N, in paragraph (1) of Section 51/A, in Sections 52-54, in paragraphs (1)-(2) of Section 55, in Sections 56-60, in paragraphs (1)-(3) and (6) of Section 60/A, in points (a) and (c) of paragraph (1) of Section 61, in paragraphs (2) and (3) of Section 61, in point (b) of paragraph (4) and in paragraphs (6)-(10) of Section 61, in Sections 62-71, in Section 72.

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must be applied with the supplements defined in § 75 (1)-(5), § 75/A, and Annex 1.

(22)

According to § 60 (1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority may initiate a data protection authority procedure ex officio. The rules of the Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority procedure with the supplements defined in the Infotv. and the deviations according to the General Data Protection Regulation.

(23)

Infotv. § 75/A: The Authority exercises the powers set out in Article 83 (2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first violation of the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily by warning the data controller or data processor in accordance with Article 58 of the General Data Protection Regulation.

(24)

The rules of the Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority procedure with the supplements defined in the Infotv. and the deviations according to the General Data Protection Regulation.

III. Decision

III.1. Fulfillment of the access request

(25)

The Applicant submitted an access request to the Respondent via email on February 28, 2023, along with their complaint. In the complaint, they described which procedure of the Respondent they were contesting and formulated their access request related to it, in which they requested information and a copy of the reasons for the actions of the Respondent's employee, as well as the processing of their data, including the processing for "debt management" purposes, in accordance with Article 15 of the GDPR.

(26)

The Respondent responded to the Applicant's complaint dated February 28, 2023, in a letter dated March 28, 2023; however, they did not respond to the access request formulated in the last sentence of the complaint, disregarding it, and did not take any action based on it until they became aware that a data protection authority procedure had been initiated against them regarding the non-fulfillment of the access request. Consequently, the Authority finds that the Respondent violated Article 12 (3) of the GDPR by not taking action based on the Applicant's request within one month of its receipt.

(27)

In the Authority's view, based on the context of the Applicant's request, it is clear that the Applicant wished to receive information regarding the circumstances of the data processing related to the call contested in their complaint, as well as regarding the processing of their personal data in general, exercising their right provided in Article 15 of the GDPR, and used the term "debt management" due to a lack of a more appropriate formulation, which is also evident from the fact that they put the word debt management in quotation marks.

(28)

According to the Authority, the Applicant's request should be interpreted as an access request under Article 15 of the GDPR, both in terms of its formulation and context, in which the Applicant requests information about the circumstances of the data processing accompanying a specific event – a call received from the Respondent's employee – as well as about the circumstances of the processing of all personal data handled by the Respondent, and a copy of the personal data handled by the Respondent. The Authority believes that the scope of the Request

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and its content is clear, and in no way can it be interpreted as relating solely to data processing for debt collection purposes.

(29)

In contrast, the Respondent considered the request as if the Applicant had only asked whether the Respondent processes their personal data for debt collection purposes, and if so, what the further circumstances of this data processing are. That is, the Respondent disregarded during the handling of the request that it pertained to all personal data processed by the Respondent and the circumstances of the processing of this personal data.

(30)

Due to the nature of the previous legal relationship between the Respondent and the Applicant, the Respondent processes a large number of personal data about the Applicant, a significant portion of which it is obliged to continue processing even after the termination of the contract, as numerous laws prescribe mandatory data processing and define retention periods for certain categories of data.

(31)

In cases where the data controller processes a large amount of personal data about a data subject, fulfilling a general access request that covers all personal data and purposes of processing requires greater effort on the part of the data controller; however, this does not mean that the data controller may interpret the request arbitrarily or restrictively.

(32)

Therefore, if it was still not clear to the Respondent, despite the above, what exactly the Applicant's request was directed at, based on the preamble (63) of the GDPR, the Respondent would have been entitled to contact the Applicant to clarify the contents of the request. Contacting the Applicant for the purpose of clarifying the request could also serve the interests of the data subject, as it would allow access to the actual personal data and information regarding the circumstances of processing that the Applicant submitted their request to learn about.

As a result, if it was still not clear to the Respondent which specific data the Applicant wished to exercise their right of access over, the Respondent should have called upon the Applicant to clarify the request, rather than taking mere superficial action based on a restrictive, literal interpretation of the request that disregarded the context, which action was not suitable to provide the Applicant with any information regarding the processing of their personal data. Consequently, the Authority finds that the Respondent violated the Applicant's right to access and to obtain a copy of their personal data as provided in Article 15(1) and (3) of the GDPR.

(33)

The Authority's position is that the information provided in the letter dated May 25, 2023, which was sent to the Applicant subsequently as a supplement to the Respondent's response to the complaint, stating that the Respondent does not process the Applicant's personal data for debt collection purposes, cannot be considered as fulfillment of the request under Article 15 of the GDPR, and the violation still persists. The Applicant has still not received an answer regarding the purpose, legal basis, and which personal data the Respondent processes.

(34)

The Authority finds it necessary to note here that the Applicant clearly articulated in their electronic letter dated June 9, 2023, that they wish to exercise their right of access under Article 15 of the GDPR concerning all their personal data and all data processing conducted by the Respondent; however, they sent this letter to the email address `adatvedelem@[...]`, whereas according to the data protection notice available on the Respondent's website, the Respondent's electronic correspondence address for data protection matters is `adatvedelem@[...]`, meaning that there is no email address to which the Applicant sent their letter dated June 9, 2023, thus it is not suitable for triggering legal effects.

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III.2. Legal Consequences

(35) The Authority establishes that the Respondent has violated Article 12(3) and Article 15(1) and (3) of the GDPR.

(36) Based on the Applicant's request, the Authority, pursuant to Article 58(2)(c) of the GDPR, obliges the Respondent to substantively fulfill the Applicant's access request in accordance with the content provided in the General Data Protection Regulation and to credibly prove the fulfillment to the Authority.

(37) According to Section 75/A of the Infotv., the Authority exercises its powers as set out in Articles 83(2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first-time violation of the provisions regarding the processing of personal data—defined in legislation or in a binding legal act of the European Union—primarily through a warning to the data controller or data processor, in line with Article 58 of the General Data Protection Regulation.

(38) In this regard, the Authority considered all circumstances of the case based on Article 83(2) of the General Data Protection Regulation and Section 75/A of the Infotv. Given the circumstances of the

case and the nature of the data processing, the Authority determined that a warning would neither be proportional nor serve as a deterrent sanction in the case of the violation uncovered during the current proceedings; therefore, the Authority decided to impose a fine in accordance with Section 61(1)(a) of the Infotv., based on Article 58(2)(i) of the GDPR.

(39) In determining the amount of the fine, the Authority took into account the provisions contained in the European Data Protection Board's Guidelines 4/2022 (hereinafter: Guidelines), which outline the calculation criteria for imposing administrative fines under the General Data Protection Regulation. In light of this, the determination of the fine amount was based on the following criteria:

a. The violations committed by the Respondent—namely, the infringement of the right of access and the right to restrict processing—are classified as more serious violations that fall into the higher fine category according to Article 83(5)(b) of the GDPR.

b. The Guidelines specify the factors to be considered in determining the severity of the violation.

a. Regarding the nature of the infringement, it is necessary to examine what interest the violated provision serves. In the specific case, the Authority established the violation of Article 12(3) and Article 15(1) and (3) of the GDPR. Article 12(3) is intended to ensure that data controllers do not disregard requests from data subjects, which are the primary means for data subjects to enforce their right to the protection of their personal data. The right of access, as stated in Recital 63 of the GDPR, is meant to ensure that data subjects can verify and check the lawfulness of the processing of their data. In this specific case, the data subject wished to exercise their right of access following an unusual phone call and to obtain information regarding the related data processing, which the Respondent did not fulfill.

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The Authority considers this circumstance as an aggravating factor in determining the severity of the infringement.

b. In relation to the severity of the infringement, the Guidelines specify the nature of data processing as a factor to be examined, namely, its geographical scope, the riskiness of the data processing, the negative impact on the data subject, as well as the relationship between the data subject and the data controller. The established infringement was committed by the Applicant in the context of activities carried out in Hungary; the related data processing activity cannot be considered high-risk, the Applicant did not suffer significant detriment as a result of the infringement, and according to the data available to the Authority, the Applicant does not belong to a particularly protected group of data subjects, nor is there a hierarchical relationship between the Applicant and the data controller. The infringement was established solely in relation to the Applicant, and there are no other affected parties in the case. The Authority interprets these circumstances as mitigating factors regarding the severity of the infringement.

c. The activities of the Applicant primarily do not aim at the processing of personal data; it cannot be considered their main activity. However, extensive processing of personal data is essential for the provision of their services and for compliance with various legal requirements, and for this reason, they process a particularly large number of personal data, thus this should be taken into account as an aggravating factor regarding the severity of the infringement.

d. It should also be examined how long the infringement has existed or has been ongoing. At the time of submission of the request for the data protection authority procedure that serves as the basis for the present procedure, the infringement had not been ongoing for even a month, meaning it cannot be considered persistent or long-lasting; thus, this circumstance is a mitigating factor regarding the severity of the infringement.

e. In the Authority's view, the Applicant acted with gross negligence in fulfilling the request, considering that the Applicant explicitly referred to Article 15 of the GDPR in the request combined with the complaint, yet the Applicant did not identify it as a request from a data subject. This circumstance was taken into account as an aggravating factor regarding the severity of the infringement.

f. In determining the severity of the infringement, the Authority also considers that the infringement does not affect special categories of personal data. This circumstance was taken into account as a mitigating factor regarding the severity of the infringement.

g. Based on all these aspects – although the nature of the infringement is considered a more serious violation – the Authority concluded that the infringements committed by the Applicant are classified as low severity, meaning that the starting point for calculating the fine is 0-10% of the maximum fine that can be imposed.

(40) The Authority evaluated the following circumstances as aggravating factors during the imposition of the fine:

a. The Applicant has previously violated the provisions of the GDPR on several occasions, with fines imposed in four cases [NAIH/2020/[...]] (two million forints); NAIH-[...]/2022.

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(harmimillion forints); NAIH-[...]/2022. (two million forints); NAIH-[...]/2023. (three million forints).

Among the procedures conducted by the Authority against the Applicant, the following violation can be considered relevant in the context of the present case:

The Authority established in its decision NAIH/2020/[...] that Articles 15(1)(f) and (g) of the GDPR were violated, considering that the Applicant did not inform the data subject about the purpose of processing their personal data based on the request and on what legal basis the complaint would be forwarded to another economic entity belonging to the corporate group, as well as the right to turn to the Authority. Due to the similarity of the violated data subject rights, this violation is considered relevant in the context of the present procedure. [GDPR Article 83(2)(e)]

b.

The Applicant did not act with due diligence regarding the Applicant's request even after becoming aware of the Authority's procedure. The access request and the circumstances of its submission were not examined with sufficient thoroughness, and no steps were taken to substantively fulfill the Applicant's request; the actions taken based on the request were merely superficial measures, which could not be evaluated as fulfilling the access request. [GDPR Article 83(2)(k)]

(41)

In determining the fine, the Authority considers Article 83(2)(h) of the GDPR as a neutral circumstance, while the circumstances under points (i) and (j) were deemed irrelevant, as they cannot be interpreted in relation to the specific case.

(42)

The Authority took into account the provisions contained in the Guidelines when determining the amount of the fine, which include the calculation aspects of administrative fines under the General Data Protection Regulation. In light of this, the determination of the amount of the fine was based on the following aspects:

a.

The Applicant committed two different violations with one behavior [GDPR Article 12(3); Article 15(1) and (3)] – the Guidelines use the term "unity of actions" in point 3.1.2 – thus, according to Article 83(3) of the GDPR, the total amount of the fine may not exceed the amount specified for the most serious violation, and the violations and their severity are assessed collectively.

b. The net revenue of the Applicant for the year 2022 – according to the Opten company information service – was [...] – that is [...] forints. The imposed fine is [...] % of the net revenue.

c. According to the provisions of Article 83(5) of the GDPR, in the case of the committed violations, the Applicant shall be subject to an administrative fine of "up to 20,000,000 EUR [static fine maximum], or in the case of enterprises, an amount not exceeding 4% of the total annual global turnover of the previous financial year [dynamic fine maximum], with the higher amount being imposed."

d. 4% of the Applicant's net revenue for 2022 is [...] Ft – that is [...] forints, which corresponds to [...]

euros at an exchange rate of 1 EUR = 373.57 HUF, thus exceeding the static fine maximum defined by Article 83(5) of the GDPR, that is, the amount equivalent to 20,000,000 EUR. Since the static and dynamic amounts...

3 On July 17, 2023, the average exchange rate according to the MNB: <https://www.mnb.hu/arfolyam-tablazat?deviza=rbCurrencyActual&devizaSelected;=EUR&datefrom;=2023.06.17.&datetill;=2023.07.17.>

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The fine must be calculated based on the higher category applicable in the given case and proportioned accordingly, thus the Respondent may be subject to a fine of up to [...] HUF – [...] – in the present matter, considering that 20,000,000 euros corresponds to [...] – that is, [...] forints – at the above exchange rate, and among these, 4% of the Respondent's net revenue is the higher amount, meaning that the dynamic maximum is to be considered as the maximum fine that can be imposed.

e. The weight of the violations established by the Authority is low, therefore, according to the appendix of the Guidelines, the starting amount for the fine calculation is to be determined at 0-0.4% of the previous year's net revenue, considering that the Respondent's net revenue for 2022 exceeded 500 million euros. In light of this, the initial fine amount determined based on the weight of the violation shall not be further modified based on additional considerations – taking into account the company's revenue – since this aspect has already been applied in determining the dynamic fine maximum in the case of the Respondent.

f. 0.4% of the Respondent's net revenue for 2022 is [...] HUF, that is [...] forints.

g. The Authority considers it proportionate to impose a fine close to the minimum fine in the present case, given the low weight of the violation, and with particular regard to the fact that the established violations occurred solely in relation to one affected party, the Applicant. Based on all of this, the Authority decided to impose a data protection fine of 10,000,000 HUF, that is, ten million forints.

h. Nevertheless, the Authority's position is that the imposed fine is effective and has a deterrent effect, as it is proportionally higher than the fines imposed in similar cases previously, and thus may have an incentivizing effect on the Respondent for more careful handling of access requests.

(43) The amount of the fine was determined by the Authority exercising its statutory discretion.

(44) Based on all of this, the Authority decided as stated in the operative part.

IV. Other Issues

(45) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(46) The decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication based on Section 82 (1) of the Ákr.

(47) According to Section 112 of the Ákr., and Section 116 (1), as well as Section 114 (1), there is a right to legal remedy against the decision and the terminating order through administrative litigation.

(48) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the litigation. According to Section 27 (1) b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(49) According to Section 29 (1) of the Kp. and in consideration of this, according to Section 604 of the Pp., the general rules on electronic administration and trust services as per Act CCXXII of 2015 (hereinafter: E-ügyintézési tv.) Section 9 (1) b) obliges the client's legal representative to maintain electronic communication.

(50) The time and place for the submission of the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The Itv. Sections 59 (1) and 62 (1) h) exempt the initiating party from the prepayment of the fee.

Budapest, July 21, 2023.

In the absence of Dr. habil. Attila Péterfalvi, President:

Dr. Tamás Bendik
General Vice President